IN THE SUPREME COURT OF THE STATE OF IDAHO

Supreme Court Docket No. 49261-2021 (Consolidated Cases Nos. 49267-2021, 49295-2021, and 49353-2021)

BRANDEN JOHN DURST, a qualified elector of the State of Idaho,
CANYON COUNTY, a duly formed and existing county pursuant to the laws and Constitution of the State of Idaho,
ADA COUNTY, a duly formed and existing county pursuant to the laws and Constitution of the State of Idaho,
SPENCER STUCKI, registered voter pursuant to the laws and Constitution of the State of Idaho,
CHIEF J. ALLAN, a registered voter of the State of Idaho and Chairman of the Coeur d'Alene Tribe, and DEVON BOYER, a registered voter of the State of Idaho and the Shoshone-Bannock Tribes,
Petitioners,

v.

IDAHO COMMISSION FOR REAPPORTIONMENT, and LAWERENCE DENNEY, Secretary of State of the State of Idaho, in his official capacity,
Respondents.

ADA COUNTY'S PETITION FOR REHEARING PURSUANT TO IDAHO APPELLATE RULE 42

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COMES NOW, Petitioner, Ada County, by and through its counsel of record, the Ada County Prosecuting Attorney's Office, Civil Division and pursuant to Idaho Appellate Rule 42, and respectfully petitions the Court for rehearing of its decision issued on January 27, 2022 in the above captioned matter.

By this Petition, Petitioner Ada County seeks a rehearing on the following issues:

- Whether a state can impose stricter requirements in determining compliance with Equal Protection.
- Whether the U.S. Constitution permits a state court to delegate to a state administrative body largely unreviewable responsibility for interpreting the Equal Protection Clause of the 14th Amendment.
- Whether the parameters of constitutional interpretation allow a court to go beyond "'reading the words as written, employing [the words] natural and ordinary meaning, and construing [the words] to fulfill the intent of the drafters'"[1] and allowing textual changes without a constitutional amendment.
- Whether Ada County, with the support of Amici Eagle and Canyon County, met its burden demonstrating that L03 was unconstitutional under the Equal Protection Clause because the Commission on Reapportionment's

[1] *State v. Winkler*, 167 Idaho 527, 531, 473 P.3d 796, 800 (2020) (quoting *Sweeney v. Otter*, 119 Idaho 135, 139, 804 P.2d 308, 312 (1990).

("Commission") Plan was arbitrary, discriminatory, and based on irrational policies.

Rather than deciding whether the Commission's Plan complies with the Equal Protection Clause, the Court states that instead it "must determine whether the Commission 'reasonably determined' the number of counties that must be divided to comply with the Equal Protection Clause."[2] Further, the Court puts the responsibility on Petitioners to show, not that the other Plans submitted to the Commission were unconstitutional, but that "the Commission unreasonably determined these plans did not comply with equal protection."[3] The Court appears to be placing a state restriction on the federal constitution. Rather than determining if a plan is constitutional, the Court is adding an additional step where first the Court must decide whether the Commission made a reasonable determination of constitutionality before the Court can reach the constitutional question of a Plan. Such authority over the federal constitution has not been delegated to a state body that is unelected and unaccountable.

The Court stated in its opinion that it is "skeptical of any effort to seemingly allow a 'statute' to control our interpretation of the Constitution in any respect."[4] However, the Court does not appear to have the same skepticism regarding

[2]Decision at 10.
[3]Decision at 13.
[4]Decision at 8.

allowing the Commission to control the Court's interpretation of the Constitution. The Commission determined that the other plans "would likely violate the Equal Protection Clause" and the Court deferred to the Commission's interpretation whether the plans were constitutional. The Constitution is the "fundamental and paramount law of the nation" and it is the judicial department that determines what the law is. *Marbury v Madison*, 5 U.S. 137 (1803). This power to determine the meaning of the Equal Protection Clause, and its compliance, cannot be delegated to a Commission under state law. The Commission had no authority to make a determination that the other Plans presented to the Commission were unconstitutional. And the Commission should not receive any deference in making those determinations since it is not part of the judicial branch.

When the Idaho Legislature put forward SJR 105 in 1994 to establish the Commission, it could have put all the structure of the Commission in the Idaho Constitution, as Arizona and Michigan, did when they created their Reapportionment Commissions. The Idaho Legislature did not do that; instead, it specifically provided that the Commission structure, duties, and criteria for redistricting would be implemented through statutes passed by the Legislature. This in effect allowed the Legislature to retain control over the Commission. And this structure of having an unelected body be accountable to the Legislature is the structure that the citizens of the state of Idaho ratified. After the ratification, in

1996, the Legislature enacted a new chapter, Chapter 15, Title 72, codified as Idaho Code §§ 72-1501 et al.[5] These statutory enactments are not mere guidance as has been suggested. In its January opinion, the Court substituted the word "statute" (law)[6] with the word "Commission." The term "statute" is not of uncertain meaning, but instead has a plain and unambiguous meaning. "What it meant when adopted it still means for purposes of interpretation." *Hawke v. Smith (No. 1)*, 253 U.S., 227 (1920). A "statute" is a law passed by the duly elected senate and house of representatives. The precedent in the state of Idaho is that legislative authority to enact statutes cannot be delegated. By replacing the word "statute" with "Commission," the Court is changing a term that means law with a term that means body that is unelected and unaccountable. This occurs outside the normal process of making text revisions to the Idaho Constitution through the constitutional amendment process which is ratified by the citizens.

Ada County argued in its initial brief, in its reply brief, and at oral argument that Ada County and Canyon County "were facing unequal treatment,"[7] that "L03 does not serve equal protection,"[8] and provided evidence of the arbitrary and disparate treatment that valued other persons' votes outside of the southwest urban

[5]Some provisions were amended in 2009.

[6]Black's Law Dictionary defines statute as "A law passed by a legislative body." P. 1633.

[7]Ada County's Brief in Support of Petition at 7.

[8]Ada County's Brief in Support of Petition at 9.

area as well as the irrational polices of the Commission. More specifically, Ada County argued that the Commission's actions "appear[ed] to be for the improper purpose of diluting the strength of the rapidly growing urban areas"[9] and that cannibalizing the "two urban counties, with almost forty percent (40%) of the state's population, does not comport with equal protection."[10] The Commission failed to address the evidence of disparate treatment provided by Ada County in its briefing or at oral argument nor did the Commission provide any explanation as to why the area of the state with almost 40% of the population was treated differently than other areas of the state. Ada County met its burden. It was the Commission that failed to reapportion in a manner that was not arbitrary, discriminatory, and based on irrational policies developed by the Commission.

The grounds and reasons set forth herein are not exhaustive and will be further set forth in Petitioner's Brief in Support of Petition for Rehearing to be subsequently filed.

DATED this 17th day of February, 2022.

/s/ *Lorna K. Jorgensen*
Lorna K. Jorgensen
Deputy Prosecuting Attorney
Attorneys for Petitioner Ada County

[9] Ada County's Brief in Support of Petition at 12.
[10] Ada County's Reply Brief at 6.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on February 17, 2022, I filed the foregoing electronically through the iCourt E-File system, which caused the following parties or counsel to be served by electronic means.

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